



**UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS**

JOHN C. KLUCZYNSKI FEDERAL BUILDING
230 S. DEARBORN STREET, 37TH FLOOR
CHICAGO, IL 60604

REGION V

ILLINOIS
INDIANA
IOWA
MINNESOTA
NORTH DAKOTA
WISCONSIN

August 7, 2024

Lisa Sayles-Adams
Superintendent
Minneapolis Public Schools-Special School District No. 1
Sent via email only to: MPSSup@mpls.k12.mn.us

RE: OCR Case No. 05-22-1171
Minneapolis Public Schools

Dear Superintendent Sayles-Adams:

This letter is to inform you of the disposition of the above-referenced complaint filed with the U.S. Department of Education (Department), Office for Civil Rights (OCR), against the Minneapolis Public Schools (District) alleging discrimination based on sex. OCR investigated whether the District discriminates on the basis of sex against female students by failing to provide equal athletic opportunity in its interscholastic athletics program in the following areas:

1. Effective accommodation of the interests and abilities of female students in the District's high school interscholastic athletics program;
2. Provision of practice and competitive facilities, and locker rooms in the District's high school interscholastic athletics program; and
3. Provision of equipment and supplies for Edison High School (Edison).

OCR enforces Title IX of the Education Amendments of 1972 (Title IX), 20 U.S.C. §§ 1681-1688, and its implementing regulation at 34 C.F.R. Part 106, which prohibit discrimination on the basis of sex in any education program or activity operated by a recipient of federal financial assistance from the Department. As a recipient of federal financial assistance from the Department, the District is subject to Title IX.

Summary of Concerns

OCR's investigation raised concerns that the District does not effectively accommodate the interests and abilities of female students in its interscholastic athletics program at several District high schools and overall. OCR's investigation also raised concerns that there is a disparity in the quality, amenities, and equivalency of the practice and competition facilities that the District provides, particularly regarding the girls softball teams. OCR similarly identified a disparity in equivalent preparation related to practice and competition facilities that favors male athletes. OCR identified further concerns regarding the District providing equal access to locker rooms.

Methodology

During its investigation, OCR reviewed documents and other information provided by the complainants, reviewed documentation provided by the District, administered and reviewed responses from surveys of District coaches and District student athletes regarding the allegations under investigation, and conducted an onsite visit to the District in May and June 2023. During OCR's onsite visit, OCR interviewed the District's Athletic Director (District AD), the District's Assistant Director of Athletics, the District's Athletic Department Project Manager (Project Manager), and the Athletic Directors (ADs) at six high schools. OCR also conducted focus groups with male and female District student athletes at the seven high schools offering interscholastic athletics programs. Finally, OCR inspected the athletic facilities used by the District, including its practice and competitive facilities, its locker rooms, and also inspected the equipment and supplies at Edison.

Before OCR concluded its investigation, the District expressed interest in resolving the complaint under Section 302 of OCR's [Case Processing Manual \(CPM\)](#) and OCR identified concerns that would be appropriate to resolve with a Resolution Agreement (Agreement).

Background

During the 2021-2022 school year, the District enrolled 8487 students in its high schools, with 4284 boys (50.5%), 4151 girls (48.9%), and 52 non-binary students. In 2022-2023, the total high school student enrollment was 8155 students, with 4104 boys (50.3%), 3972 girls (48.7%), and 79 non-binary students.

The District's high school athletes compete in the Minneapolis City Conference of the Minnesota State High School League (MSHSL). The District AD stated to OCR that the District offers all sports sanctioned by the MSHSL, with the exception of clay target shooting and synchronized swimming, either at a District school or through a District-sponsored Cooperative team. The District offers the following sports: alpine skiing (boys and girls), badminton (girls), baseball (boys), basketball (boys and girls), cross country (boys and girls), football, golf (boys and girls), gymnastics (girls), hockey (boys and girls), lacrosse (boys and girls), Nordic ski (boys and girls), soccer (boys and girls), softball (girls), swimming and diving (boys and girls), tennis (boys and girls), track and field (boys and girls), volleyball (girls), and wrestling.

Although the District offers all of the sports identified above, the District does not offer all of the sports at every high school. Seven District high schools have an interscholastic athletics program: Edison, Patrick Henry High School (Henry), North High School (North), Roosevelt High School (Roosevelt), South High School (South), Southwest High School (Southwest), and Washburn High School (Washburn). Each school that offers interscholastic athletics opportunities has a designated AD, and the AD for the school generally has discretion to determine which sports will be offered at their school.

In addition to the school-specific athletics teams, the District provides some athletics teams through "Cooperative Sponsorship" (Co-op), which MSHSL defines as a formal agreement between two or more schools within a school district allowing students from those schools to compete on a single team. A Co-op is typically formed when a high school has student athletes who are interested in participating on an athletics team, but the school does not have enough

student athletes to support an individual school team. For the 2020-2021 and 2021-2022 school years, the District offered Co-op opportunities on District-wide teams for alpine skiing (boys and girls), hockey (boys and girls), and lacrosse (boys and girls). Individual schools also can form Co-op teams with other schools, with one school serving as the “host school” and providing its practice and competitive facilities and locker rooms to the team. During the 2021-2022 school year, for example, Edison, North and Henry created a Co-op for girls soccer, and Roosevelt, South and Washburn formed a Co-op for boys and girls swimming and diving.

The District also offers the following adapted sports to boys and girls with disabilities: Bowling, CI Hockey, PI Hockey, CI Soccer, PI Soccer, CI Softball, PI Softball. However, the District does not always have participants for all the adapted sports offered and the District AD stated that the adapted sports do not compete in the MSHSL.

Applicable Legal Standards

The Title IX regulation, at 34 C.F.R. § 106.41(a), states, “No person shall, on the basis of sex, be excluded from participation in, be denied the benefits of, be treated differently from another person or otherwise be discriminated against in any interscholastic athletics offered by a recipient, and no recipient shall provide any such athletics separately on such basis.” The Title IX regulation, at 34 C.F.R. § 106.41(c), states, “A recipient which operates or sponsors interscholastic, intercollegiate, club or intramural athletics shall provide equal athletic opportunity for members of both sexes.”

Interests and Abilities

The Title IX implementing regulation, at 34 C.F.R. § 106.41(c)(1), and applicable OCR policies, require a recipient of federal financial assistance from the Department to provide participation opportunities in its interscholastic athletics program for female and male students that equally and effectively accommodate the athletic interests and abilities of members of both sexes. The policies pertaining to the accommodation of athletic interests and abilities include the *December 11, 1979, Intercollegiate Athletics Policy Interpretation* (Policy Interpretation), at 44 Fed. Reg. 71413 et seq.

OCR uses a three-part test to assess whether the interests and abilities of members of both sexes are being effectively accommodated to the extent necessary to provide an equal opportunity to participate in interscholastic athletics. A recipient may demonstrate compliance with Title IX by demonstrating compliance with any one part of the following three-part test:

1. The recipient is providing interscholastic athletics participation opportunities for female and male students in numbers substantially proportionate to their respective enrollments; or
2. The recipient has a history and continuing practice of interscholastic athletics program expansion that is demonstrably responsive to the developing interests and abilities of students who are members of the underrepresented sex; or
3. The interests and abilities of students who are members of the underrepresented sex have been fully and effectively accommodated by the recipient’s current interscholastic athletics program.

Each part of the three-part test is an equally sufficient and separate method of complying with the Title IX regulatory requirement to provide nondiscriminatory athletic participation opportunities.

Program Components

In addition, the Title IX regulations at 34 C.F.R. § 106.41(c)(2), and (7), require a recipient of federal financial assistance from the Department to provide equal opportunities in the program components of the provision of equipment and supplies and the provision of locker rooms, practice and competitive facilities. OCR uses the Policy Interpretation in determining compliance with these regulatory provisions. OCR evaluates compliance by comparing the availability, quality and kinds of benefits, opportunities and treatment afforded members of both sexes. An institution is in compliance if the compared program components are equivalent; that is, equal or equal in effect.

OCR examines each factor relating to the benefits, opportunities, or treatment of male and female athletes in the applicable program component, and determines whether the same or similar benefits, opportunities or treatment were provided for all students; or if not, whether the differences had a negative effect on one sex that resulted in a disparity. When OCR identifies disparities between the boys and girls teams (*e.g.*, if a boys team receives a superior benefit in some way), OCR considers whether the benefit provided to a team was offset by an unmatched benefit to any of the teams in the program of the opposite sex. In making this comparison, and before OCR concludes that a benefit to one team offsets a benefit provided to a team of the opposite sex, OCR considers whether the offsetting benefits were equivalent or equal in effect. OCR only finds the benefit offsetting if it has the same or a similar effect on the student athlete(s) or team within the program component.

If OCR finds no evidence of offsetting of disparities, OCR then considers whether the differences between the benefits provided to the boys and girls programs are negligible. Where the disparities are not negligible, OCR examines whether the disparities are the result of legitimate, nondiscriminatory factors. If OCR finds no legitimate, nondiscriminatory reasons for the disparities, OCR determines whether the identified disparities result in the denial of equal opportunity to male or female athletes, either because the disparities collectively are of a substantial and unjustified nature or because the disparities in the program component are substantial enough by themselves to deny equal athletic opportunity. The result of this comparison is not to ensure identical benefits, opportunities, or treatment, but rather to ensure that, overall, the athletics program provides equivalent benefits to males and females.

Locker Rooms, Practice and Competitive Facilities

The Policy Interpretation lists six factors to be assessed in determining whether a recipient provides equal opportunities in the provision of locker rooms, practice and competitive facilities: (1) the quality and availability of the facilities provided for practice and competitive events; (2) the exclusivity of use of facilities provided for practice and competitive events; (3) the availability of locker rooms; (4) the quality of locker rooms; (5) the maintenance of practice and competitive facilities; and (6) the preparation of facilities for practice and competitive events.

Equipment and Supplies

The Policy Interpretation lists five factors to be assessed in determining whether a recipient provides equal opportunities in the provision of equipment and supplies: (1) quality; (2) amount; (3) suitability; (4) maintenance and replacement; and (5) availability of equipment and supplies.

Interests and Abilities

For the 2021-2022 school year, there were approximately 4,324 total participation opportunities in the District's interscholastic athletics programs, excluding the adapted sports. The District provided 2,387 (55.2%) opportunities for boys and 1,937 (44.8%) opportunities for girls. District-wide, the disparity between the female enrollment rate and their interscholastic athletics participation rate was 4.1 percentage points. The District would have needed to have provided approximately 347 more female participation opportunities to achieve a participation rate substantially proportionate to their enrollment rate, without eliminating any athletic opportunities for boys in the District. The District does not track and could not identify the teams that it has eliminated since 1972. The only sports the District reported having added in the last 20 years were four sports programs in 2007: girls and boys adapted softball, and girls and boys lacrosse.

According to the District AD, the District has not completed a student athletic interest survey in the past ten years. The District also has not maintained copies of and could not provide OCR with past surveys or assessments conducted to gauge the students' athletic interests and abilities. No school-level AD reported to OCR having conducted surveys specifically for the purpose of determining unmet student interest and abilities in athletics. The District AD also confirmed that the District does not have written policies, procedures, or criteria for determining how and whether sports and/or levels will be added or elevated to the interscholastic athletics program, a written procedure for requesting additional interscholastic athletics opportunities, or a process for assessing or responding to such requests. The District does not have a plan in place for athletics program expansion. School-level ADs also did not identify any specific procedures that they are following when determining whether to add additional interscholastic athletics teams or levels.

District High Schools Without Substantial Proportionality

The District does not provide interscholastic athletics participation opportunities for male and female student athletes in numbers substantially proportionate to enrollment rates at Edison, Henry, North and South, and the disproportionality favors males.

Edison

During the 2021-2022 school year, Edison offered opportunities for students to participate on 11 boys and 12 girls teams, in addition to the three District Co-op teams per sex. No female Edison student participated on a District Co-op team in 2021-2022. Edison participated in Co-op teams with North and Henry for girls soccer, and boys and girls Nordic ski. Edison does not cut potential participants from its interscholastic athletics program, with the exception of boys soccer. During the 2021-2022 school year, Edison had a total enrollment of 934 students, with 462 female and 470 male students, and provided 120 participation opportunities for female students and 240 for male students, representing a 16.2% difference in enrollment and athletic participation rate in favor of male students. Edison would need to provide 115 more female

opportunities to achieve exact proportionality in its athletics opportunities proportionate to its enrollment rates, which is higher than the average roster size for the girls teams offered.

Henry

During the 2021-2022 school year, Henry offered opportunities for students to participate on 9 boys and 9 girls teams, in addition to the three District Co-op teams per sex. However, no Henry students participated on any of the District-wide Co-op teams. According to [redacted content], Henry has participated on Co-op teams with North and Edison for girls soccer, and boys and girls Nordic ski, and with North for girls softball and tennis. Henry does not cut potential participants from any of its interscholastic athletics teams. During the 2021-2022 school year, Henry had a total student enrollment of 918 students, with 444 female and 472 male students, and provided 143 participation opportunities for female students and 207 for male students, representing a 7.5% difference in enrollment and athletic participation rate in favor of male students. Henry would need to provide 51 more female opportunities to achieve exact proportionality in its athletics opportunities proportionate to its enrollment rates, which is higher than the average roster size for the girls teams offered by Henry.

North

During the 2021-2022 school year, North offered opportunities for students to participate on 9 boys and 8 girls teams, in addition to the three District Co-Op teams per sex. No students from North participated in the District's Co-op hockey or lacrosse teams and only one male student participated on the District-wide Co-op alpine skiing team. North does not cut participants from its interscholastic athletics teams. During the 2021-2022 school year, North had a total enrollment of 436 students, with 192 female and 244 male students, and provided 93 participation opportunities for female students and 189 for male students, representing an 11.0% difference in enrollment and athletic participation rate in favor of male students. North would need to provide 55 more female opportunities to achieve exact proportionality in its athletics opportunities proportionate to its enrollment rates, which is higher than the average roster size for the girls teams offered by North.

South

During the 2021-2022 school year, South offered opportunities for students to participate on 11 boys and 12 girls teams, in addition to the three District Co-op teams per sex. South does not cut potential participants from its interscholastic athletics program, with the exception of boys basketball. During the 2021-2022 school year, South had a total enrollment of 1587 students, with 778 female and 796 male students, and provided 229 participation opportunities for females and 330 for males, representing an 8% difference in enrollment and athletic participation rate in favor of male students. South would need to provide 88 more female opportunities to achieve exact proportionality in its athletics opportunities proportionate to its enrollment rates, which is higher than the average roster size for the girls teams offered by South.

District High Schools with Substantial Proportionality

Roosevelt, Southwest and Washburn

During the 2021-2022 school year, Roosevelt, Southwest and Washburn offered opportunities for students to participate on 11 boys and 12 girls teams, in addition to the three District Co-op teams per sex. The number of athletic opportunities each of these schools would need to provide the underrepresented sex in order to achieve exact proportionality is lower than the average roster size for the school's teams of that sex. Therefore, the District provided interscholastic athletics participation opportunities for male and female student athletes at Roosevelt, Southwest and Washburn in numbers substantially proportionate to their enrollment rates in 2021-2022.

Practice Facilities and Competitive Facilities

The District utilizes on-campus facilities at the District high schools offering interscholastic athletics opportunities, off-campus facilities at other District schools, off-campus Park District facilities, and off-campus private facilities for its high school interscholastic athletic programs.

[Redacted content] told OCR that the District owns and operates two facilities not located at a District high school that District high schools utilize for practice and competitive events (North Star Gymnasium and Northeast Middle School Pool). The District also stated to OCR that they have a contract with the Minneapolis Park and Recreation Board (Park Board) that allows District schools to rent Park District facilities for its interscholastic athletics program. Additionally, the District pays to use other facilities not managed and operated by the Park Board, such as golf courses and cross-country skiing courses. The District AD noted that multiple high schools use some of the same off-campus facilities. The ADs and athletes told OCR that the District does not provide transportation to practices for students who participate on Co-op teams or who practice at facilities that are not located on their school's campus. ADs and athletes reported that for some teams, the school provides transportation on rented yellow buses to competitions. Additionally, some athletes and ADs reported to OCR that coaches use discretionary funds to rent charter buses for competitive events, and female athletes told OCR that boys teams were provided higher quality transportation to competitions.

OCR inspected the facilities utilized by the District's interscholastic athletics teams during an onsite visit to the District in May and June 2023. Unless indicated, OCR observed the on-campus District high school facilities, including locker rooms, to be generally clean and well-maintained by the high school's custodial and building grounds staff. Additionally, the school-level ADs told OCR that they, along with the building staff, prepare the on-campus facilities for practices and competitive events, with the exceptions noted below. Overall, OCR found the facilities located at the seven high schools to be of average to above-average quality, of regulation size, designed specifically and with appropriate markings for the sport or sports practicing and/or competing in the facility, and to have standard amenities for the sport or sports utilizing the facilities. Unless noted below, OCR's inspection determined that each high school's gymnasium has standard amenities for the sports offered, including floor markings and other built-in equipment (basketball hoops, floor post holes), bright overhead lighting, an electronic scoreboard and public address (PA) system, and spectator bleacher seating, as well as suitable public facilities including a ticket area, concession area, drinking fountain and public restroom. Also unless noted below, OCR observed that each high school's outdoor stadium has appropriate

amenities for the sports offered that consists of a grass or turf field sufficient to hold a regulation-sized football and/or soccer field, surrounded by a rubber-surface track appropriately marked for track and field, permanent goal posts, permanent stadium-style bleachers, a press box, an electronic scoreboard and PA system, stadium lighting, as well as suitable public facilities including a ticket area, concession stand, and plumbed restrooms.

With respect to the Park Board facilities, the Park Board manages, operates, and maintains the facilities. The Park Board staff maintain, set-up and prepare the facility for practices and competitions. Unless noted, OCR observed the Park Board facilities to be generally clean and well-maintained without any concerns identified regarding preparation. OCR found all private facilities used by the District to be high quality, well-maintained and clean.

Off-site Facilities: Baseball

The District's high school boys baseball teams practice and compete at several parks that are managed, operated and maintained by the Park Board, including Bossen Park, Neiman Sports Complex, North Commons Park, Northeast Athletic Field Park, Parade Baseball Field, Killebrew Field at Pearl Park, and Van Cleve Park. Except for Henry, no District high school has an on-campus baseball facility. In addition, some female student athletes told OCR that, unlike the softball teams, the baseball teams have been provided the opportunity to compete at Target Field, a Major League Baseball facility. The baseball teams have exclusive use of the fields during practices times and competitive events, and the facilities are always available to them during their scheduled practices and competitions.

Bossen Park

All levels of the Roosevelt boys baseball teams practice and compete at the Bossen Park baseball field. The Bossen Park baseball field is specifically designed for baseball, but is not regulation, the field appears poorly maintained, with several patches of dried grass and weeds growing in the field and areas where grass is missing. The Bossen Park field lacks any amenities including dugouts, foul line and home run fencing, lights, a scoreboard, and PA system. The field has a set of permanent spectator metal bleachers on each baseline that appear to be in good condition and has portable restrooms.

Neiman Sports Complex

Situated on 50 acres of land, the Neiman Sports Complex has multiple baseball, softball, and soccer fields. The Washburn Varsity baseball team competes at the Neiman Sports Complex baseball fields, which are specifically designed and regulation for boys baseball, of high quality and have all standard baseball amenities including a backstop, foul line and home run fencing, foul poles, two enclosed dugouts with metal benches, an electronic scoreboard, overhead lighting, a pitcher's warm-up area, an enclosed hitting area, and bleacher seating for spectators. OCR observed the condition of the grass fields to be good, with a few areas that are not level and patches of dry grass. The facility has portable restrooms.

North Commons Park

All levels of North boys baseball teams practice and compete at the North Commons Park baseball field. The North Commons Park baseball field is specifically designed and regulation

for boys baseball, of high quality with a turf field that has permanent markings for baseball. The field has all standard baseball amenities including a backstop, foul line and home run fencing, foul poles, two enclosed dugouts with metal benches, an electronic scoreboard, a pitcher's warm-up area, and two 4-row metal bleachers for spectator seating located on each sideline near home plate. However, the facility lacks lighting for night play. The facility has a portable restroom.

Northeast Athletic Field Park

The Northeast Baseball Diamonds (NBD), located within the Northeast Athletic Field Park, consists of two regulation baseball diamonds with grass infields and outfields. The Edison Varsity boys baseball team practices and competes on Field #1 and the JV and B-squad teams practice and compete on Field #2. The two fields are specifically designed and regulation for boys baseball, and of high quality. Field #1 has all standard baseball amenities including a backstop, foul line and home run fencing, foul poles, enclosed cinder block dugouts, overhead lighting, an electronic scoreboard, a pitcher's warm-up area, an enclosed hitting area, and three sets of spectator seating benches. Field #2 is fully fenced with backstop and foul poles, has an electronic scoreboard, partially enclosed dugouts, and a spectator area. However, Field #2 is not lighted, and there is no pitcher warm-up area or enclosed hitting area. The fields are in excellent condition, freshly mown, level, and clear of debris. OCR likewise observed the dirt infields to be level, raked, and clear of debris. Indoor plumbed public restrooms are located between Field #1 and Field #2 in a separate building.

Parade Baseball Field

Parade Baseball Field is located in "Parade Park," which is about 45 acres and contains a baseball field, a football/soccer field, a softball field, and an ice arena. OCR's review of the competitive schedules of the teams indicates that Edison, Southwest, Roosevelt and Washburn all play baseball games at Parade. The Parade Baseball Field is a high-quality facility specifically designed and regulation for baseball, with all standard baseball amenities including a backstop, foul line and home run fencing, foul poles, two enclosed dugouts with metal benches, an electronic scoreboard, overhead lighting, a pitcher's warm-up area, an enclosed hitting area, and permanent metal bleacher seating for spectators. The facility also has a press box, permanent concession stand, and portable restrooms. The baseball field appears very well maintained, with level, evenly mowed grass that does not have any bald or patchy spots.

Pearl Park - Killebrew Field

All levels of the Washburn boys baseball teams practice and compete at the Pearl Park baseball field, Killebrew Field. Killebrew Field is specifically designed and regulation for boys baseball, of high quality and has all standard baseball amenities including a backstop, foul line and home run fencing, foul poles, two enclosed dugouts with metal benches, an electronic scoreboard, overhead lighting, and bleacher seating for spectators. The baseball field appears well maintained, with level grass that has a few bald areas and patchy spots. The facility has portable restrooms located adjacent to the baseball field.

Van Cleve Field

All levels of South boys baseball practice and compete at the Van Cleve Park baseball field. The Van Cleve Park baseball field is specifically designed for baseball. OCR was unable to determine whether the outfield is regulation distance from home plate. The baseball field has a backstop, foul line and home run fencing, foul poles, two enclosed cinder block dugouts, a pitcher's warm-up area, and permanent metal bleacher seating for spectators, but lacks a PA system, a scoreboard, and lighting. OCR could not identify nearby restrooms.

Off-site Facilities: Softball

The District's high school softball teams practice and compete on softball fields at several parks that are managed, operated and maintained by the Park Board, including Bossen Park, Creekview Park, Jackson Square Park, Pearl Park, and Pershing Park. No District high school has an on-campus softball facility. The softball teams have exclusive use of their fields during their practice and competitive events; however, as noted below, coaches, athletes and the ADs all told OCR that the softball teams are regularly displaced from their fields at 6pm due an adult men's recreational softball league, which they referred to as the "beer league," regardless of whether they have completed their game.

Bossen Park

Bossen Park includes six softball fields that are specifically designed for softball, but according to the student athletes and school-level ADs, are not regulation for fast-pitch softball. All levels of the girls softball teams at Roosevelt and South practice and compete, and all levels of Washburn compete at the Bossen Park softball fields. The softball fields are newer and of good quality, with standard softball amenities including an all brick-dust infield with a grass outfield, backstop fencing, foul line and home run fencing with yardage markings, foul poles, two enclosed dugouts, and overhead lighting. However, the fields do not have scoreboards or a PA system. The facility has portable restrooms.

The Bossen Park softball fields are not always available to the girls softball teams because the fields are used by the Park District's men's beer league teams. In addition to the softball teams only having access to the fields until 6pm for competitions, regardless of whether a practice or game has concluded, softball athletes noted that often, the men's beer league teams arrive before their scheduled 6pm start time and the girls softball teams no longer have access to the fields.

Creekview Park

All levels of the Henry girls softball teams practice and compete at Creekview Park. Creekview Park has one main softball field and one auxiliary field. The main field is of poor quality and contains a softball diamond with an all brick dust infield, a backstop, foul line and home run fencing, outfield fencing and two sets of viewing bleachers, but has uncovered bench dugouts, and does not have lighting, a PA system or a scoreboard. The Creekview Park auxiliary field is located northeast of the main softball field and is not regulation for the sport. It contains a dirt infield with a backstop, but lacks a dugout or other player seating, spectator seating, lights, fencing, a PA system and a scoreboard. The fields are not well maintained, and OCR noted weeds growing in the infield.

Jackson Square Park Softball Diamond

All levels of Edison girls softball practice and compete at the Jackson Square Park softball field. Jackson Square Park is located across the street from Edison, roughly 100 feet from the school. The Jackson Square Park softball field is designed specifically for softball but is not regulation for fast-pitch softball. Although the dirt infield can fit a regulation size diamond with safe distances to foul ball obstructions, the space from the bases to the outfield are not symmetrical, and the outfield grass is patchy with noticeable weeds. The softball field has a brick and metal fence backstop and home run fencing, but lacks foul line fencing, lighting, a scoreboard, a PA system, and spectator seating. The softball field has benches with screens instead of enclosed dugouts. OCR noted that plumbed indoor restrooms may be available near the playground on the opposite end of the park.

Pearl Park

Washburn girls softball teams practice and sometimes compete at the Pearl Park softball field, which is designed specifically for softball but is not regulation for fast-pitch softball, and is of poor quality. The Pearl Park softball field has lighting but lacks other basic softball amenities of foul line and home run fencing, dugouts, spectator seating, scoreboards, and a PA system. The quality of the outfield grass is poor, with significant bald and patchy spots, and has markings for football and soccer.

Pershing Park

All levels of the Southwest girls softball teams practice and compete at the Pershing Park softball field, which is designed specifically for softball, but is not regulation for fast-pitch softball. Pershing Park softball field is of poor quality with no amenities. The softball field has backstop fencing but lacks foul line and home run fencing. The outfield grass has patchy areas and is not level. Softball athletes have access to the restrooms at Southwest Stadium, located adjacent to the softball field outfield.

Off-site Facilities: Tennis

The District's high school boys and girls tennis teams practice and compete at tennis courts at several parks that are managed, operated and maintained by the Park Board. No District high school has an on-campus tennis facility.

OCR observed the tennis courts at Folwell Park, Kenwood Park, Lake Hiawatha Park, Linden Hills Park, Lynnhurst Park, Morgan Park, Northeast Athletic Field Park, Pershing Park, Powderhorn Park, and Webber Park. With the exception of North Commons Park, each of these parks includes four to eight tennis courts, with a synthetic rubber on asphalt court surface that is adequately marked for tennis. North Commons Park includes two tennis courts. All of the courts are specifically designed and appeared to be regulation-size for the sport. The tennis courts observed by OCR generally were level, with few to no cracks or signs of other disrepair. However, OCR observed the tennis courts at North Commons Park, used by North boys tennis team for practices, to be cracked and in need of resurfacing with weeds growing in the cracks and under the net. The Webber Park tennis courts, used by all levels of Henry boys and girls teams for practices and competitions, also are in very poor condition with many cracks and other

signs of disrepair. All the tennis court areas are enclosed by a chain link fence. None of the courts have electronic scoreboards, PA systems, or designated spectator seating. Only the Pershing Park courts, used by the Southwest boys and girls tennis teams for practices and competitions, have overhead lighting.

Off-site Facilities: Used by Multiple Teams

Cross Country: Gale Woods Farm (GWF)

All levels of boys and girls cross country from Edison, Roosevelt, South, Southwest, and Washburn practice occasionally and compete at GWF, a facility owned and operated by the Three Rivers Park District located in Minnetrista, Minnesota. GWF is primarily a farming, nature, and community center with over 27,000 acres of parks and trails. During cross country events, the trails are closed off from public use. GWF has a designated start line and finish area for cross country races. GWF offers pavilions, restrooms, and an air-conditioned visitor's center/store. During an onsite visit, OCR observed many of the trails to be in excellent condition.

Golf: Columbia Golf Course, Meadowbrook Golf Club, and Theodore Wirth Golf Course

The District high school boys and girls golf teams practice and compete at several public Park Board golf courses, including Columbia Golf Course, Meadowbrook Golf Club, and Theodore Wirth Golf Course, which OCR visited. Both the boys and girls golf teams use and have access to the same facilities and amenities at each course. Each course has standard amenities for golf and suitable public facilities, and the grounds are in very good condition. The courses, based on distance and difficulty, do not favor one sex over another.

Gymnastics: North Star Gym

The North Star Gym is a District facility for use exclusively by the District's high school gymnastics programs. [Redacted content] told OCR that because North Star Gym is the primary and home facility for all of the District's gymnastics teams, all the schools generally practice and compete at the same times. Blue mats cover the gym floor which is sectioned off for different gymnastics events (e.g., uneven parallel bars). Multiple tables and chairs are set up for officials. There also are 2 sets of portable aluminum bleachers for spectators on one side of the wall. The District AD stated that the gym is designed to allow for livestreaming gymnastic competitions. The facility also has a girls locker room that includes a sufficient number of lockers for each District athlete who participates in gymnastics, wooden benches, individual restroom stalls, sinks, mirrors, a soap and a paper towel dispenser, and an open shower area that had 5 individual showerheads mounted onto the wall. OCR observed the locker room to be clean and well-maintained.

Nordic Ski: Theodore Wirth Regional Park

Varsity boys and girls Nordic ski teams from all District high schools with interscholastic athletics participants (Edison, Henry, North, Roosevelt, South, Southwest and Washburn) practice and compete at the Theodore Wirth Regional Park, which has a 2.1 km hiking trail course used for Nordic skiing from mid-November to early-April. OCR was informed that the Loppet Foundation, a non-profit organization, maintains the trails through a partnership with the Park Board, which owns the facility. The facility has public indoor restrooms, but no public

locker rooms. OCR was unable to assess the maintenance of the trail or facilities due to the onsite visit occurring in the offseason.

Swimming and Diving: Phillips Park Aquatic Center

The South, Roosevelt and Washburn boys and girls swim teams practices and compete at the Phillips Park Aquatic Center, a Park Board facility. Phillips Park Aquatic Center has a 25-yard indoor competition pool with six lanes, each with its own starting block, and a 1-meter diving board with a dedicated lane located in the middle of the pool, an electronic scoreboard and timer, concrete floors in good condition, a spectator balcony area with 5 rows of permanent metal bleachers, an upper balcony area without seats, and public restrooms. OCR did not inspect any locker rooms at the facility or observe locker rooms near the pool.

Practice Facilities and Competitive Facilities: District-wide Co-op Sports

For the District-wide Co-op sports, the athletes on the alpine ski and hockey teams use the same facilities as the sport of the opposite sex and are given equivalent access to the facility for practices and competitions. The District utilizes the Hyland Hills Ski Area, which is owned and operated by the Three Rivers Park District located in Bloomington, Minnesota, for boys and girls Alpine ski. The District utilizes Northeast Ice Arena and Parade Ice Arena, both managed, operated and maintained by the Park Board, for its boys and girls hockey teams. The hockey facilities are specifically designed for the sport with appropriate amenities and public facilities. For the District-wide Co-op lacrosse teams, the boys lacrosse team practices and competes at North and the girls lacrosse team practices and competes at South (described in more detail below).

Practice Facilities and Competitive Facilities: Edison

The Edison interscholastic high school athletics program uses the following facilities that are located on the Edison campus: Edison Stadium and Edison Community Gym. Edison uses the following off-campus facilities for practices and competitive events: Northeast Athletic Field (boys baseball, boys and girls tennis), Gale Woods Farm (boys and girls cross country), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Jackson Square Park (girls softball), Hyland Hills (boys and girls swimming – competition only), Northeast Middle School (boys and girl swimming – practice only).

Edison Stadium

Edison Stadium is located across the street to the west of Edison. Edison Stadium was first built in 1932 and last renovated in 2016. In the fall, the Edison football team and boys soccer team practice and compete at Edison Stadium. (The girls soccer team previously used Edison Stadium for practices and competitions until they joined a Co-op hosted by another school). In the spring, boys and girls track and field teams share Edison Stadium for practice and competitive events.

Edison Stadium has standard amenities for football, soccer and track and field, and has suitable public facilities. The facility also has a smaller, adjacent grass auxiliary field to the southeast of the main field. During the on-site visit, OCR noted that the main and auxiliary fields of Edison Stadium, although level, have hard, dry ground and the grass is thin and patchy in some areas. Players and coaches rated the maintenance of Edison Stadium as good to poor.

Edison Community Gym

Edison Community Gym (ECG) was built in 1977 and sits across the street to the west of the original Edison High School building. The two buildings are connected by two underground tunnels. During the fall, the Edison girls volleyball teams practice and compete in the ECG. During the winter, the Edison boys and girls basketball teams practice and compete and the boys wrestling team competes in the ECG. The boys wrestling team practices in the wrestling room located in the basement of the ECG. The girls' badminton team practices and competes in the ECG during the spring.

The ECG has standard amenities for basketball, volleyball, and badminton, can accommodate wrestling rings, and has suitable public facilities. OCR noted the floor was freshly refinished with markings for each sport court. The ECG wrestling room is an L-shaped room with space for numerous mats, padded walls, and sufficient space for four to six wrestling circles.

Northeast Middle School Swimming Pool (Off-Campus District facility)

The Edison boys and girls swimming and diving teams practice at the Northeast Middle School Swimming Pool (Northeast Pool), located inside Northeast Middle School, which is a District middle school, approximately 1.7 miles from Edison. The Northeast Pool is a 75-foot long by 35-foot wide pool, with lane dividers for five lanes, that can facilitate one-meter diving. There are two elevated viewing platforms with bleachers on each side of the pool. The pool has regulation backstroke spotting flags, and the facility has starting blocks (although not out at the time of OCR's inspection). OCR observed the pool water to be clean and clear. The facility is well lit, and the pool deck organized. The facility has a boys and girls locker room, with typical locker room amenities, that are mirrors of each other except slightly different toilet area configurations.

Exclusive Use and Availability

All Edison teams have exclusive use of their facility for practices and competitive events, except for the boys and girls track and field teams who share the facility with the same team of the opposite sex. During the fall, Edison Stadium is not always available to the boys soccer and the football teams for practices when the other team is using it for practice or a competitive event. Similarly, the ECG is not always available to the boys and girls basketball teams, as they share the facility. Additionally, the girls softball teams have been required to end games prior to completion because an adult men's beer league uses the facility.

Practice Facilities and Competitive Facilities: Henry

The Henry interscholastic high school athletics program uses the following facilities that are located on the Henry campus: Henry Main Gym, Henry Old Gym, Cassidy Field, and Swanson Field. Henry uses the following off-campus facilities for practices and competitive events: Gale Woods Farm (boys and girls cross country), Theodore Wirth (boys and girls Nordic ski), Creekview Park (girls softball), Webber Park (boys and girls tennis).

Main Gym

The Main Gym is located in the school's main building. During the fall season, the girls interscholastic and boys club volleyball teams practice and compete in the Main Gym. In the

winter, the boys and girls basketball teams practice and compete in the Main Gym, and the wrestling team uses the Main Gym for competitions. In the spring, the girls interscholastic and boys club badminton teams practice and compete in the Main Gym.

The Main Gym has standard amenities for basketball, volleyball, and badminton, and has suitable public facilities. The Main Gym floor was sanded and repainted with markings for basketball, volleyball, and badminton in the summer of 2022.

Old Gym and Auxiliary Space

Henry retained its original gymnasium (Old Gym), dating back to the 1920s, and an adjacent auxiliary space as occasional practice facilities for some of its athletic teams. During the winter, the wrestling team practices in these spaces. Both facilities appear to be in poor condition and have no amenities.

Swanson Field

Swanson Field is located approximately 0.3 miles southeast of Henry. The football and boys and girls soccer teams practice and compete at Swanson Field in the fall. The boys and girls track and field teams practice and compete at Swanson Field in spring.

Swanson Field has standard amenities for those sports but lacks permanent public restrooms and potable drinking water. [Redacted content] told OCR that the field is not regulation for football. The field grass is of average to below average quality, with some bald spots and unlevel areas. The track, however, is made of a rubberized surface in very good condition, without cracks or holes. Two portable restrooms are located near the main entrance to the field.

Cassidy Field

Cassidy Field is located directly west of Swanson Field. The boys baseball teams practice and compete at Cassidy Field during the spring. [Redacted content] told OCR that occasionally the boys and girls soccer teams practice in the outfield of Cassidy Field in the fall (when Swanson Field is not available), and sometimes the junior varsity track and field teams use the field as a throwing area for practice.

The baseball field is specifically designed and regulation for boys baseball, of high quality and includes a backstop, foul line and home run fencing, foul poles, an electronic scoreboard, two covered dugouts, metal benches, and a pitcher's practice area, but lacks overhead lighting. Cassidy Field and Swanson Field share the use of their concession stand/ticket area, press box and portable restrooms, and Cassidy Field similarly lacks potable drinking water.

Exclusive Use and Availability

All Henry teams have exclusive use of their facility for practices and competitions, except for the boys and girls track and field teams who share their facility with the same team of the opposite sex. As for availability, the football and boys and girls soccer teams use Swanson Field for practices and competitions during the fall, the boys and girls basketball teams both use the Main Gym for practices and competitions during the winter, and the girls volleyball and girls badminton teams share their facility with boys club teams of the same sport, despite these boys

club sports not being MSHSL-sanctioned sports. Additionally, [redacted content] stated that during the 2022-2023 school year, Creekview Park, the facility used by the girls softball team, was not ready for usage and as a result, the girls softball team had to conduct some practices and competitions in the parking lot.

Practice Facilities and Competitive Facilities: North

The North interscholastic high school athletics program uses the following facilities that are located on or near the North campus: Jacobi Gym and Hobbs Field. North uses the following off-campus facilities for practices and competitive events: North Commons Park (boys baseball, boy tennis practice), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Folwell Park (boys tennis competitions).

Main Gym (Jacobi Gym)

The Main Gym is in the school's main building. The District's [redacted content] was not aware when the Main Gym was constructed or when the gym was last renovated. During the fall season, the girls volleyball teams practice and compete in the Main Gym. In the winter, the boys and girls basketball teams share the Main Gym for practices and competitions, and the wrestling team uses the Main Gym for competitions. In the spring, the girls badminton teams practice and compete in the Main Gym. The Main Gym has standard amenities for basketball, volleyball, and badminton. It also has suitable public facilities.

North Stadium (Hobbs Field)

North's outdoor stadium, known as Hobbs Field, is located about 0.4 miles northeast of North. The football and boys and girls track and field teams practice and compete in the Stadium in the fall and spring, respectively. The District Co-op boys lacrosse team also practices and competes in the Stadium in the spring. North Stadium underwent a multimillion-dollar renovation in approximately 2020. The Stadium contains an artificial turf field that accommodates a regulation-size football, lacrosse or soccer field that is encircled by a 400-meter, 8-lane track, with standard amenities for those sports and suitable public facilities. OCR observed the facility to be of high quality.

Exclusive Use and Availability

All North athletics teams have exclusive use of their facility for practices and competitions, except for the boys and girls track and field teams who share their facility with the team of the opposite sex. Additionally, the facilities are generally available to teams, with the exception of the boys and girls basketball teams who are unable to use the Main Gym when the team of the opposite sex is using it for practices or competitions.

Preparation

The student athletes did not identify any significant preparation responsibilities, except the girls volleyball players stated that they set up their own nets for practices, the girls badminton players set up nets for practices and competitions, and a girls badminton player also indicated that the players sometimes set up chairs for spectators in lieu of using the bleachers.

Practice Facilities and Competitive Facilities: Roosevelt

The Roosevelt interscholastic high school athletics program uses the following facilities that are located on the Roosevelt campus: Al Gowan Field and practice field, Main Gym, South Gym, North Gym, and the Wrestling Room. Roosevelt uses the following off-campus facilities for practices and competitive events: Bossen Park (boys baseball, girls softball), Gale Woods Farm (boys and girls cross country), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Nokomis Park (boys and girls B-squad soccer practice), Hyland Hills (boys and girls swimming), Lake Hiawatha Park (boys and girls tennis).

Al Gowan Field

Al Gowan Field is located adjacent to Roosevelt to the south and was last renovated in 1998. During the fall, the Varsity and JV boys football teams, and the Varsity and JV boys and girls soccer teams practice and compete at Al Gowan Field. The B-squad boys and girls soccer teams also compete at the facility. In the spring, the boys and girls track and field teams practice at Al Gowan Field and host one competition.

Al Gowan Stadium has standard amenities for football, soccer, and track and field, and has suitable public facilities, including a heated building that houses the plumbed restrooms, a permanent concessions area, and a storage area. The grass field is of average to below average-quality with some bald spots, mildly bumpy areas, and not level areas. Although OCR observed the track's rubberized surface to be in very good condition, without cracks or holes, the straightaways for jumping events and pole vault are in poor condition with cracked surfaces in some areas and weeds growing in the cracks.

Directly north of Al Gowan Field (between Al Gowan Field and Roosevelt), is a large field that primarily is used as a practice field. All levels of the boys football teams and the Varsity and JV boys and girls soccer teams use the practice field for practices in the fall. The Varsity and JV boys baseball teams and girls softball teams occasionally practice on the practice field in the spring. The field had no markings, lights, or other amenities. The field is not level, the grass has bald and muddy spots, and [redacted content] stated that the field has significant drainage issues.

Main Gym

The Roosevelt Main Gym is a large open space with high ceilings and bright lighting that was last renovated in the 1970s. During the fall, all levels of the girls volleyball teams compete in the Main Gym and the Varsity and JV volleyball teams practice in the Main Gym. During the winter, all levels of the boys and girls basketball teams compete in the Main Gym, the Varsity and JV boys and girls basketball teams practice in the Main Gym, and the Varsity and JV wrestling teams compete in the Main gym. During the spring, the girls badminton teams practice and compete in the Main Gym. The Main Gym has standard amenities for basketball, volleyball, and badminton. It also has suitable public facilities.

South Gym

The South Gym is a small rectangular room that was constructed in 1923 with high ceilings, bright lighting, and windows near the ceiling on one side that allow for natural light. The B-

Squad volleyball teams and the B-squad boys and girls basketball teams practice in the South Gym. The South Gym is not used by Varsity or Junior Varsity teams or for competitive events.

The South Gym is marked for basketball and volleyball, with 6 permanent basketball hoops around the perimeter and post holes for one volleyball net that were installed in summer 2022, but no amenities. The basketball court is not regulation in size and does not have all appropriate markings. Athletes complained that the space is not well ventilated and gets hot during practices.

Wrestling Room

The Wrestling Room is located in Roosevelt's basement level. The wrestling team practices in the wrestling room. The floor is covered in padded wrestling mats (non-permanent). The room has padded walls, with low ceilings and bright overhead lights. The space is not wide enough to accommodate a full-sized wrestling circle. There is a concrete pole in the middle of one end of the room, which is covered in padding. The room does not have any amenities, but portable sound system/speakers are located at one end of the room.

Lake Nokomis Park (Park Board facility)

The Roosevelt B-squad boys and girls soccer teams practice and compete in a field area at Lake Nokomis Park. Upon visual inspection, however, OCR could not determine the location of the soccer field because the field is an open grassy area located on a hill with areas that have slopes and included no marking for soccer at the time of OCR's visit. The grassy field area is not level, the quality of the grass field is fair with patches of dry grass. [Redacted content] noted that many players suffered ankle injuries practicing and playing on that field when they used the field for soccer practices in the past. The park also includes baseball or softball diamonds, which have overhead lighting, but there is not designated lighting for the fields where soccer would be played. OCR could not locate any nearby restrooms.

Exclusive Use and Availability

All Roosevelt athletics teams have exclusive use of their competitive facility for competitions, except for one co-ed track and field meet each year. Roosevelt teams also generally have exclusive use of their facilities for practices, except when the boys football teams and the Varsity and JV boys and girls soccer teams share the Al Gowan practice field for practices. Additionally, the availability of Al Gowan Field is limited in the fall due to all levels of the football team and the Varsity and JV boys and girls soccer teams all using the field for practices and competitions. In the winter, the Main Gym is not always available to the boys and girls basketball teams who both use it for practices and competitions. Additionally, the Roosevelt girls softball team routinely is displaced from their practice and competition facility at Bossen Park due to the men's beer league having reserved the field beginning at 6pm.

Preparation

[Redacted content] told OCR that the girls volleyball teams are responsible for setting up the nets and the wrestling team is responsible for setting up the mats for both practices and competitions. The girls badminton players also reported setting up nets for practices and competitions and spectator chairs for competitions. A soccer player told OCR that she and her father assembled

and set up the soccer nets at Nokomis Park at the beginning of the season. [Redacted content] was unaware of this and stated that the Park Board should have set up the soccer nets.

Practice Facilities and Competitive Facilities: South

The South interscholastic high school athletics program uses the following facilities that are located on the South campus: Main Gym, South Stadium, South Practice Field, and the Wrestling Room. South uses the following off-campus facilities for practices and competitive events: Van Cleve Field (boys baseball), Midtown YWCA Minneapolis Sports Center (boys and girls basketball – practice only), Gale Woods Farm (boys and girls cross country), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Bossen Park (girls softball), Hyland Hills (boys and girls swimming – competition only), Phillips (boys and girl swimming practice and competitions), Powderhorn Park (boys and girls tennis).

Main Gym

During the fall, the girls volleyball teams practice and compete in the Main Gym. During the winter, all levels of the boys and girls basketball teams practice and compete in the Main Gym, and the boys wrestling team uses the Main Gym for competitions. The Main Gym has standard amenities for basketball, volleyball and badminton. It also has suitable public facilities.

South Stadium

South Stadium, located across the street from South's main building, was renovated in 2019. During the fall, the Varsity boys football team and the Varsity girls and boys soccer teams practice and compete in the Stadium. During the spring, the Varsity girls and boys track and field and the District Co-op girls lacrosse team share the Stadium for practices and competitions. South Stadium has standard amenities for football, soccer and track and field, and has suitable public facilities. The football/soccer field is artificial turf.

South Practice Field

The South Practice Field is adjacent to the school's main building and across the street from South Stadium. During the fall, the JV girls and boys soccer teams and lower level boys football teams practice at the Practice Field. The girls lacrosse team occasionally uses the Practice Field for practice during the spring. The South Practice Field has four removable goal posts and the grass appeared to be in fair condition without muddy patches or many bald spots. The Practice Field does not have bleachers, designated seating areas, or other amenities.

Wrestling Room

South also has a wrestling room that is used by the wrestling team for practices. OCR has not yet inspected the wrestling room.

Midtown YWCA Minneapolis Sports Center (Off-campus facility)

The Midtown YWCA is located across the street from the South Stadium and one block northwest from South's main building. During the winter, South's Varsity and JV girls and boys basketball teams alternate use of the Midtown YWCA for practices. South's boys and girls track

and field athletes also informed OCR that they use the indoor track and field facilities during inclement weather. [Redacted content] stated that the District owns the athletic facilities and leases them to the YWCA. It has four indoor basketball/volleyball courts that appear to be regulation size and are encircled by a 200-meter 4-lane track. It also has a long jump and pole vault pit.

Exclusive Use and Availability

All South athletics teams have exclusive use of their competitive facility for competitions, except for the boys and girls track and field teams who share their facility with the team of the opposite sex. For practices, the boys and girls soccer teams practice in the same facility at the same time, and the boys and girls track and field teams share their facility with each other and with the District Co-op girls lacrosse team, therefore do not have exclusive use of their facilities. South Stadium is not available to the track and field teams when the lacrosse team is hosting a competition at the field, and the Main Gym is not always available to the boys and girls basketball teams when the team of the opposite sex is using it. Additionally, the girls softball teams are displaced from their facility at 6pm due to the men's beer league using it, regardless of whether their competitive event is completed.

Practice Facilities and Competitive Facilities: Southwest

The Southwest interscholastic high school athletics program uses the following facilities that are located on the Southwest campus: West Gym, West Auxiliary Gym, East Gym, East Auxiliary Gym, Southwest Weight Room, Southwest Pool, Southwest Stadium.

Southwest uses the following off-campus facilities for practices and competitive events: Armatage Park (boys JV and B-squad baseball – practice only, boys and girls soccer – practice only), Gale Woods Farm (boys and girls cross country), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Lynnhurst Park (boys soccer – practice only) Pershing Park (boys football – practice only, girls softball, boys and girls tennis), Hyland Hills (boys and girls Alpine ski, boys and girls swimming – competition only), Linden Hills (boys and girls tennis).

West Gym

The West Gym, located on the first floor of Southwest main building, is the largest gym at Southwest. The West Gym is a large modern, open space that has standard amenities for basketball, volleyball, and badminton, and has suitable public facilities. The West Gym's flooring was replaced around 1998 or 1999 and is wooden with markings for basketball and volleyball. During the fall, the girls Varsity and JV volleyball teams practice and compete in the West Gym. During the winter, all levels of the boys and girls basketball teams practice and compete in the West Gym; however, the lower level basketball teams primarily practice in the East Gym. The boys wrestling team uses the West Gym for competitions and occasionally for practices. During the spring, the girls badminton teams practice and compete in the West Gym.

East Gym

The East Gym is smaller in size than the West Gym, but larger than the auxiliary gyms (described below) and is used only for practices. The B-Squad and 9th grade girls volleyball teams practice in the East Gym in the fall, the boys and girls B-Squad and 9th grade basketball

teams practice in the East Gym during the winter, and the girls badminton teams use the East Gym for practices in the spring. The East Gym's flooring is wooden and has markings for basketball and volleyball. The East Gym includes one regulation-sized basketball and/or volleyball court or can be divided into 2 separate "short" courts for basketball and/or volleyball. The East Gym has standard amenities for basketball and volleyball.

West Auxiliary Gym

The west auxiliary gym is a smaller rectangular room approximately 50 by 60 feet with approximately 20-foot ceilings. The wrestling team primarily practices in the West Auxiliary Gym during the winter season. [Redacted content] stated that during the winter season, when the wrestling team uses the facility, the floor is also lined with wrestling mats. The gym's floor is covered with black rubber and has no markings.

East Auxiliary Gym

The east auxiliary gym is similar in size to the west auxiliary gym. The boys baseball and girls softball teams primarily use the east auxiliary gym for practice batting. Unlike the west auxiliary gym, the east auxiliary gym's flooring appears to be made of linoleum tiles, with 3 large circle markings on the floor.

Southwest Pool

During the fall and winter, the Southwest Varsity and JV girls swimming and diving teams and Varsity and JV boys swimming and diving teams use the Southwest Pool for practices and some competitions. [Redacted content] explained that because the boys and girls swimming and diving teams are currently in Co-ops with other District high schools, they practice with boys and girls swimming and diving participants from Co-op high school teams. The Co-ops have exclusive use of the pool for their practices. The Southwest pool is a 25-yard lap pool that is approximately 5 to 6 feet deep and has 6 swimming lanes with dividers, each with its own starting block. The ceiling is approximately 15-20 feet high, although there was sufficient lighting, the lighting was dimmed. The floor tile appears to be in good condition. A large electronic scoreboard is located on a wall in a corner. The Southwest pool has suitable public facilities.

Southwest Stadium

Southwest Stadium is located approximately 2 blocks from Southwest. During the fall, the Varsity and JV boys football teams, and Varsity and JV boys and girls soccer teams practice and compete at the Stadium. In the spring, the boys and girls track and field teams share the Stadium for practice and host several competitions at the Stadium. Southwest Stadium has standard amenities for football, soccer and track and field. It also has suitable public facilities.

Armatage Park and Lynnhurst Park (Park Board facilities)

All levels of the Southwest girls and boys soccer teams sometimes practice at Armatage Park, and all levels of the Southwest boys soccer teams also sometimes practice at Lynnhurst Park. Both fields are Park Board facilities. The Armatage Park soccer field appears to be regulation-size based on the location of the removable goal posts on opposite sides of the field; however, OCR did not observe any visible soccer markings on the field. The quality of the grass field is

poor, with several patches of dried grass and weeds, and the field does not have any amenities. OCR also did not observe restrooms in the park. The Lynnhurst soccer field appears to be of regulation-size based on the faint markings on the field, with well-maintained and level grass. It has no amenities or permanent goal posts/nets. A building located in the park appeared to have restrooms, but OCR did not confirm the times in which the restrooms are unlocked and available to be used by the athletes.

Exclusive Use and Availability

All of Southwest's athletic teams have exclusive use of their competitive facilities for competitions. All teams generally have exclusive use of their practice facility for practices as well, except for teams that sometimes practice with the same team of the opposite sex. As to availability, in the fall, the upper level boys football teams, boys soccer teams, and girls soccer teams use the Stadium for practices and competitions, so it is not always available to them. Similarly, both the boys and girls basketball teams use the West Gym and East Gym for practices and competitions during the winter, so these facilities are not always available.

Preparation

[Redacted content] told OCR that the girls volleyball and girls badminton teams are responsible for preparing the gyms for both practices and competitions. Additionally, [redacted content] and student athletes stated that the girls softball athletes and their coach are responsible for putting up the fence at Pershing Park because it does not have any fencing.

Practice Facilities and Competitive Facilities: Washburn

The Washburn interscholastic high school athletics program uses the following facilities that are located on the Washburn campus: Main Gym, Gym 103, Wrestling Mat Room, and Washburn Stadium. Washburn uses the following off-campus facilities for practices and competitive events: Neiman Field Sports Complex (boys baseball – competition only), Pearl Park (boys baseball, boys and girls soccer – practice only, girls softball), Gale Woods Farm (boys and girls cross country), North Star (girls gymnastics), Theodore Wirth (boys and girls Nordic ski), Bossen Field (girls softball – competition only), Phillips Pool (boys and girls swimming), Lynnhurst Park (boys soccer – practice only; boys and girls tennis – practice only), Kenwood Park and Morgan Park (boys and girls tennis).

Main Gym

The Washburn Main Gym has appropriate amenities for basketball, volleyball and badminton, and suitable public facilities. During the fall, the girls volleyball teams practice and compete in the Main Gym. During the winter, all levels of the boys and girls basketball teams practice and compete in the Main Gym and the boys wrestling teams use the Main Gym for competitions. During the spring, the girls badminton team practices and competes in the Main Gym.

Washburn Auxiliary (Gym 103)

The auxiliary gym, referred to as Gym 103, contains what appears to be one regulation-sized basketball and volleyball court, as well as three badminton courts. No teams are assigned to use Gym 103 for practices or competitive events. However, some girls basketball athletes reported

that on rare occasions, they continued their practices in Gym 103 after being displaced from the Main Gym. Gym 103 has no amenities.

Wrestling Mat Room

The Wrestling Mat Room is a rectangular room approximately 55 feet by 50 feet, adjacent to Gym 103. The wrestling team practices in the wrestling mat room. The room's walls and floors are covered in pads. The mat room has a private, single stall bathroom attached, as well as a furnace room that is used for storage.

Washburn Stadium

Washburn Stadium is located adjacent to the east of the main building. During the fall, the boys football teams practice and compete in Washburn Stadium, and the boys and girls soccer teams use the Stadium for competitions. During the spring, the boys and girls track and field teams practice and compete in Washburn Stadium. [Redacted content] indicated that Washburn Stadium is scheduled to undergo renovations in 2024. Washburn Stadium has appropriate amenities for football, soccer and track and suitable public facilities. The field is artificial turf. The track is made of asphalt and the markings are worn and not visible in some places. A large grassy field approximately 55 feet by 50 feet located between the main high school building and Washburn Stadium is referred to as the "Mall Area". [Redacted content] stated that the lower levels of football use the Mall Area for practice and occasionally the boys soccer team uses the Mall Area for practice as well. The Mall Area field has no markings and does not have any specific amenities.

Pearl Park (Park Board facility)

All levels of the Washburn boys and girls soccer teams use seven grass soccer fields at Pearl Park for practice. [Redacted content] did not know if any of the soccer fields are regulation size. The fields appear well maintained, with fresh striping and appropriate markings for soccer, but have no amenities or permanent goal posts/nets. OCR did not identify restrooms near the fields.

Exclusive Use and Availability

All of Washburn's athletic teams have exclusive use of their competitive facilities for competitions. All teams generally have exclusive use of their practice facility for practices as well, except for teams that sometimes practice with the same team of the opposite sex, including the boys and girls track and field teams. Most facilities are always available to the team, with the exception of the boys and girls basketball teams, who share the Main Gym for practices and competitive events during the winter. However, the availability of the facility used by girls softball team at Bossen Park is limited by the field being used by the men's beer league, limiting their ability to complete competitive events. Moreover, the girls basketball team players said they were occasionally displaced from the Main Gym, an issue that was not reported by the boys basketball players.

Preparation

[Redacted content] told OCR that the girls softball team and their coach put up temporary fencing at Pearl Park for practices and competitions because Pearl Park does not have fencing.

Locker Rooms

Edison, Henry, South, and Washburn Locker Rooms

The boys and girls locker rooms used by the interscholastic athletes at Edison, Henry, South, and Washburn are identical in terms of size, number of lockers, and general amenities, with the exception of the Washburn boys PE locker room having a larger number of similarly sized lockers than the girls PE locker room (320 vs. 280). Additionally, the Washburn Varsity locker rooms do not have restroom or shower facilities, but athletes have access to these amenities in an adjacent PE locker room. Although the locker rooms have slightly different configurations for their boys and girls shower and toilet areas, OCR found no meaningful differences between the locker rooms at Edison, Henry, South and Washburn. The Washburn female interscholastic athletes, however, reported that they do not always have access to their locker room and that their locker room is locked throughout the day, while the boys locker room is open and the boys have access to their locker room at all times.

North Locker Rooms

North's boys and girls athletics participants use the locker rooms inside the Main Gym. Additionally, there are two identical locker rooms, with typical locker room amenities, at North Stadium that are designed to be used by home and away teams that are new and of high quality but appear unused. [Redacted content] was not present during OCR's onsite visit and the [redacted content] was not familiar with the specific athletic program at North.

Girls Locker Room

The North girls locker room is a large space with 73 medium lockers, and 480 small half sized lockers stacked one on top of another, and an additional 19 large lockers located in a separate area. The locker room has individual stall restrooms, sinks, mirrors, permanent hair dryers attached to the wall, and a separate area with individual stall showers (without curtains) and an open shower area that included dividers without curtains. A long hallway area includes four full length mirrors but appeared to be used as storage. The female athletes that participated in OCR's focus groups indicated that female athletes do not shower in the locker rooms because they have a bad smell, there is not hot water, and they are dirty. OCR observed the locker room shower area does not appear to be used, has an unpleasant odor, has build-up on the surface areas and does not appear clean. The locker room floor was not clean and appeared to lack maintenance.

Boys Locker Room

The North boys locker room contains 102 large full-sized lockers and 416 small half-sized lockers. The boys locker room also contains an equipment supply room for the football team, as well as an area that has individual bathroom stalls, urinals, sinks, and a shower room with open shower stalls. The boys locker room appeared to lack maintenance.

Roosevelt Locker Rooms

There are 3 locker rooms at Roosevelt located adjacent to the Main Gym.

Boys Varsity Locker Room

The boys Varsity locker room is used exclusively by male interscholastic athletes. The locker room has 216 large metal lockers, an area with a restroom stall, urinal, sink, mirror, soap dispenser and paper towel dispenser, and an area with open showers. A training room is attached to the boys Varsity PE locker room. The training room includes storage, an ice machine, a small refrigerator, whiteboards, a paper towel dispenser, and a desk. A referee restroom is attached to the training room, with a restroom stall, sink, mirror, soap dispenser and paper towel dispenser. [Redacted content] stated this restroom is used by all referees, regardless of their sex.

Boys PE Locker Room

The boys PE locker room is not used by interscholastic athletes. It is a mirror image of the girls PE locker room, has 614 smaller lockers stacked two tall, and has similar amenities.

Girls PE Locker Room

The girls PE locker room is used by all girl interscholastic athletes and all students who are enrolled in PE. The locker room has 369 lockers total, including 152 large lockers and 227 smaller lockers stacked two tall. Thirty-five of the larger lockers are located in the “varsity area” of the locker room, which is a small enclosure that only includes these 35 lockers on the outside walls, with a small open space in the middle. The locker room has only two restroom stalls, two sinks, two small mirrors and a long horizontal mirror, one soap dispenser, and one paper towel dispenser. The girls PE locker room includes 7 individual/single stall showers and an open shower area with metal dividers. OCR observed that the shower area lights flickered. The female student athletes reported that they do not use the shower facilities because they lack hot water.

[Redacted content] and the female student athletes reported that there are not enough lockers for each female student athlete to have their own locker during the fall season; however, all male student athletes had access to a locker in one of the locker rooms. The female interscholastic athletes also reported that they do not always have access to their locker room and that their locker room is locked throughout the day. However, the boys locker rooms are open and the boys have access to their locker room at all times.

Southwest Locker Rooms

There are 7 locker rooms at Southwest: boys and girls Varsity locker rooms, boys and girls PE locker rooms, boys and girls pool locker rooms, and the boys stadium locker room. The Varsity locker rooms are designated for and used exclusively by athletes. However, according to [redacted content], not all teams use the locker rooms and the boys Varsity locker room is used almost exclusively by the football team during the fall season. All students who are enrolled in PE use the PE locker rooms, and interscholastic athletes also use the PE locker rooms. The boys and girls pool locker rooms are used exclusively by the boys and girls Varsity and JV swimming and diving athletes. [Redacted content] stated boys football players have exclusive use of the stadium locker room, except when the boys soccer teams occasionally use the locker room during practice and competitions.

Boys Varsity Locker Room and Girls Varsity Locker Room

The boys and girls Varsity locker rooms are located adjacent to the West gym. Although the Varsity locker rooms are generally designated for Varsity athletes, they can be used by all

athletes. The girls Varsity locker room has 124 large full-sized lockers and 20 medium sized lockers, while the boys Varsity locker room has 192 full-sized lockers. The boys and girls Varsity locker rooms include similar amenities in terms of restroom stalls, sinks, mirrors, soap dispensers, a paper towel dispenser, except the girls Varsity locker room has individual/single stall showers with shower curtain dividers, while the boys locker room has an open shower room. The female interscholastic athletes reported that they do not always have access to the girls Varsity locker room throughout the day because it is locked. However, the boys Varsity locker rooms are open and the boys have access to their locker room at all times.

Boys PE Locker Room and Girls PE Locker Room

The boys and girls PE locker rooms are used by all athletes and all students who are enrolled in PE. The PE locker rooms have a similar number and size of lockers, as well as similar configuration for restrooms, sinks and showers. [Redacted content] stated that [redacted content] assigns lockers to the students enrolled in PE for the semester. The remaining lockers are unassigned and free for athletes to use.

Boys Pool Locker Room and Girls Pool Locker Room

The boys and girls pool locker rooms are located next to the pool and adjacent to the East Gym. The pool locker rooms each have the same number and size of lockers, and a similar configuration in terms of restroom and shower areas. The pool locker room lighting was very dimmed, and the locker rooms appeared dark.

Boys Stadium Locker Room

The boys stadium locker room is located under the spectator bleachers in Southwest Stadium. This locker room has 70 full-sized lockers, restroom stalls, a urinal, sinks, and mirrors. The boys stadium locker room was observed by OCR to be dirty and at the time of the inspection, appeared to be used as a storage facility, and is poorly ventilated.

Equipment and Supplies: Edison

The Complainant alleged that the Edison's girls soccer team has lower quality uniforms and does not have adequate supplies compared to the boys soccer team.

Funding for Equipment and Supplies

According to the District AD, the District does not provide funds for the purchase of equipment and supplies. Equipment and supplies are purchased using discretionary athletics funds, referred to as 5024 funds. 5024 funds are generally made up of student sport fees, team fundraising, booster club money, and gate receipts from athletic events. The District does not provide guidance to individual high schools as to how the school spends its 5024 funds. All interscholastic athletics participants pay a student sport fee per season, which is retained by the high school that provides the interscholastic athletics team and becomes part of the school's 5024 fund. There are no policies in place regulating the use of student sport fees, and schools are not required to use the fees generated by a specific athletics team to purchase equipment and supplies for that team. For Co-op sports, the student sport fee is retained by either the host school

or the District. During the 2021-2022 school year, Edison generated \$28,383.00 for equipment and supplies through student sport fees.

The District AD told OCR that the District provides a set amount of money to each District high school annually to purchase uniforms for specific teams, with the goal of a six-year replacement cycle. However, there are no specific requirements related to the use of the funds and the District does not monitor or adjust the funding if a high school uses other funds to purchase uniforms or does not use the allotted funds to purchase uniforms for the sport identified per the District's uniform replacement schedule. Individual high schools can also use booster club funds, as well as discretionary athletic funds for uniforms. In 2022-2023, the District provided each school with \$14,000.00 to purchase uniforms.

Edison provides uniforms, equipment, and supplies for all interscholastic athletics teams offered at the school. [Redacted content] requires the coaches for all interscholastic athletics teams to maintain in good working condition the teams' uniforms, equipment, and supplies. [Redacted content] provides each team with storage space and access to the Edison washing facility. [Redacted content] told OCR that each year, team coaches request equipment and supplies that they need for their team, and [redacted content] divides the 5024 discretionary funds based on each sport's primary need, with each sport receiving some funding. The District did not identify any specific District or school policies related to allocation of funding for athletics.

Girls Badminton

For its 8-11 member badminton team, Edison provides a uniform top and shorts. Surveyed athletes rated the quality and quantity of uniforms between "good" and "excellent." The District AD told OCR that the District will provide funding to purchase new badminton uniforms during the 2023-2024 school year. Edison provides shuttlecocks for practice and competition. No student athlete complained about the quality and quantity of shuttlecocks, and OCR verified that Edison has sufficient quantity, quality, availability for practice and competition. Although viewed as personal equipment, Edison allows student athletes who do not have badminton racquets to use gym class racquets. Three athletes using them rated the Edison provided rackets as "poor." OCR's on-site investigation confirmed the rackets are regulation, but well worn. One athlete also stated that the nets are in poor condition. However, OCR observed sufficient newer nets to hold practice and competition. OCR also observed the nets are regulation size and of adequate quality.

Boys Baseball

Edison provides uniforms to its 30-40 baseball athletes, consisting of 2 uniform tops (for home and away), baseball pants, and a hat. Athletes interviewed by OCR stated that they are provided additional items, like warm-ups, t-shirts, and sweatshirts through team fundraising. The District AD told OCR that the District will provide funding to purchase new baseball uniforms during the 2024-2025 school year. Coaches surveyed by OCR rated the quality of the uniforms as "good." Most baseball athletes interviewed and surveyed by OCR similarly rated the quality of the uniforms between "fair" and "good." The players also informed OCR that they considered helmets and bats as personal equipment, as some players have purchased better fitting and more protective helmets and specifically sized and weighted bats. OCR, during its on-site inspection of the school, also rated the quality of the baseball uniforms as good.

According to [redacted content], Edison provides game and practice baseballs, helmets, bats, catcher's equipment and hitting equipment, including a pitching machine. The coaches surveyed by OCR rated the equipment as "excellent." The players rated their school provided equipment as "fair" to "good." The coaches and players interviewed and surveyed stated, and OCR verified during its on-site inspection that the equipment is provided in sufficient quantity, is regulation for practice and competition and is in good operating condition.

Boys and Girls Basketball

For its 19-26 member girls basketball teams, and 27-37 member boys basketball teams, Edison provides each team member with home and away jerseys and shorts, and a sweatsuit. According to the District AD, all high schools received money in 2021 and Edison replaced its Varsity and Junior Varsity boys and girls basketball uniforms that year. Lower-level teams (B-squad and or freshman teams) wear past versions of uniforms for both girls and boys teams. The surveyed and interviewed athletes of both sexes generally rated the quality of their uniforms as "good". OCR's inspection verified the basketball uniforms for both boys and girls are regulation, well maintained, and of sufficient number and quality. Players provide their own socks, compression wear, and shoes. 5024 funds raised by the team are used to purchase team t-shirts, shorts, and sweatshirts for practice and personal use.

In terms of equipment, the teams receive basketballs for practice and competitive events. Teams use newer basketballs for competitions and older balls for practice. OCR verified that the basketballs provided are regulation for both boys and girls teams. Although [redacted content] told OCR that each sex has a rack of 15 basketballs (including both game and practice balls), the surveyed boy basketball athletes complained about the number and wear on the available basketballs. OCR noted the boys ball rack only had 8 basketballs in various stages of wear, effecting the 27-37 boys. The girls ball rack, however, had 15 basketballs that appeared newer and of higher quality.

Boys Football

Edison provides uniforms to its 41-58 football athletes (including one girl), which consist of home and away jerseys and pants, and provides practice jerseys and pants. The District allocated money to Edison in 2021-2022 to replace football uniforms. Edison also provides helmets and pads, tackling sleds, blocking pads, game balls, and practice balls from 5024 funds. Athletes rated the uniforms, equipment, and supplies between "fair" and "good." OCR's on-site inspection verified that the uniforms, equipment, and supplies are regulation, in good condition for competition, and of sufficient quantity for practice and competition.

Boys and Girls Golf

According to District information, only 3 girls and 9 boys participated in golf at Edison during the 2021-2022 and 2022-2023 school years. Edison provides golf participants with a uniform shirt and a golf bag for the season. The teams received donations of golf clubs (both new and used) and golf balls that are available for the student athletes to use. The athletes provide their

own shoes, gloves, tees, and additional balls. [Redacted content] rated the equipment and supplies as regulation and “excellent.” No golf participants responded to OCR’s survey.

Boys and Girls Soccer

Edison provides uniforms for its 50-51 member boys soccer team. Edison provides home and away uniforms consisting of a short sleeve top and shorts. Edison also provides a separate long sleeve goalie jersey of a contrasting color to each team. The District AD informed OCR that both boys and girls soccer teams received money from the District to replace all soccer uniforms for the 2023-2024 season. OCR notes that beginning in the 2021-2022 school year, Edison participated in girls soccer as part of a Co-op sport hosted at another high school, and according to the District AD the host school is responsible for providing the uniforms, equipment, and supplies. However, OCR observed that Edison has two full sets of uniforms that are in new or like-new condition for both boys and girls soccer teams. OCR observed that Edison has enough uniforms for several levels of boys and girls teams. The soccer coaches surveyed by OCR rated team uniforms as “good.” Surveyed athletes rated their uniforms as “fair” to “good” with one boys soccer athlete rating the uniforms as “poor.” During the on-site visit, OCR found the quality and quantity of uniforms for both the boys and girls teams to be of high quality. For equipment, the District provides soccer balls for both practice and competition. During the onsite, OCR observed the school to have a sufficient number of balls in good condition. OCR did not receive any complaints related to the quality, quantity, and or availability of the soccer balls.

Girls Softball

Edison provides uniforms to its 18-29 softball athletes, consisting of 2 uniform tops (for home and away) and pants. Athletes interviewed by OCR stated that the coach provides each player with a t-shirt and sweatshirt for practice. According to interviewed athletes the team received visors and personal apparel (sliding pants, batting gloves, and socks) from the Minnesota Twins Baseball Team. According to the District AD, Edison, like all other high schools, will receive District funds in 2024-2025 to replace its current softball uniforms. Most surveyed softball athletes rated the quality of the uniforms between “fair” and “good.” OCR, during its on-site inspection of the school found the uniforms to be of good to excellent quality.

According to [redacted content], Edison provides softballs, helmets, bats, catcher’s equipment and hitting equipment, including a pitching machine. Information obtained during interviews indicated that the Minnesota Twins Baseball Team also provided the softball team bats, hitting tees, and additional game balls. The players also informed OCR that they considered helmets and bats as personal equipment, as some players have purchased better fitting and more protective helmets and specifically sized and weighted bats. The players interviewed and surveyed stated, and OCR verified during its on-site inspection, that the equipment provided is regulation for practice and competition, is in good to excellent operating condition, and provided in an adequate amount for the number of athletes.

Boys and Girls Swimming

For its 1-2 member boys and girls swimming teams, Edison does not provide uniforms, equipment, or supplies for either team. [Redacted content], confirmed this, and informed OCR

that all athletes are required to provide their own swimsuits, warm-ups, caps, goggles, kickboards, and fins. The swimming program is not on the District list for uniform funds.

Boys and Girls Tennis

For its 13-14 member girls tennis athletes and 13-14 member boys tennis athletes, Edison provides a uniform consisting of one shirt and one pair of shorts to each participant. The girls and boys tennis coaches and athletes rated the uniforms as “poor” to “good.” One boys’ tennis athlete told OCR that the uniforms are old, dated, and have not been replaced in many years. OCR confirmed that both teams have adequate quantities of uniforms.

Edison provides the boys and girls tennis teams with tennis balls for practice and competition. According to [redacted content], each season, each team receives a new 24 can case of tennis balls to use for competitions. The teams use the balls for practice after using them for competition. OCR observed the high quality of the tennis balls provided to the teams. The District also provides secondhand rackets for athletes that do not have their own. Interviewed and surveyed athletes and coaches rated the quality of the rackets provided by the school as “poor.” OCR’s onsite inspection verified the condition of the rackets as “poor.” However, according to the interviewed tennis athletes, many team members have their own personal rackets for use.

Boys and Girls Track and Field and Cross Country

For the 2022-2023 season, Edison used the District-provided funds to purchase new uniforms for boys and girls track and field and cross country. The uniforms consist of a tank style top and shorts. Edison’s 14-15 boy track athletes, 4 boy cross country athletes, 7 girl track athletes, and 4 girl cross country athletes received new uniforms. Surveyed coaches and athletes for both the boys and girls teams rated the quality as “good” and the number sufficient, which OCR verified during its on-site visit. Although personal items, Edison also provides shoes, donated from outside parties, for the athletes (both boys and girls) to select from if an athlete needs shoes. The track and cross country teams fundraise and receive booster support for t-shirts and sweatshirts for personal and practice use. During athlete interviews, one track athlete stated that for female athletes, Edison ordered several (3-4) compression type tops for the girls team, which are prohibited by the MSHSL, making them non-regulation. As a result, some girls shared uniforms during the 2022-2023 season, effecting 3 to 4 athletes. [Redacted content] informed OCR that he corrected this error by ordering new tops for the girls team.

Edison also provides hurdles, starting blocks, jump pits, landing pads and high jump bars, which the boys and girls track and field teams share. For throwing events, Edison provides separate shot put and discus (based on size and weight) for the boys and girls teams. Although regulation and rated “good” by interviewed and surveyed athletes, [redacted content] rated the equipment related to shot put and discus as “poor.” During the on-site visit, OCR noted that Edison has 8 newer aluminum adjustable starting blocks, five larger discuses for boys and three smaller discuses for girls. OCR noted the quality as adequate for practice and competition, with one boy’s competition discus well worn. OCR also noted one practice/competition shotput for boys and two practice shotputs (including one competition shotput) for girls. Again, although regulation for practice and competition, they are all well-worn.

Girls Volleyball

Edison provides uniforms to its 31-35 volleyball athletes. The uniform consists of three jerseys (two short sleeve and one long sleeve) and one pair of shorts. The team fundraises and purchases t-shirts and sweatshirts for leisure and/or practice using 5024 funds. According to the District AD, the uniforms were replaced for the 2022-2023 season. Interviewed and surveyed athletes and coaches rated the uniform quality as “good” or “excellent” and of sufficient quantity. OCR’s on-site inspection verified both the high quality and sufficient quantity of the uniforms. Athletes also told OCR the players provide their own personal equipment/gear of shoes and knee pads. In terms of equipment, Edison provides nets, standards, and volleyballs. Although generally rated as “good” quality and to be regulation for the sport, [redacted content] indicated that the nets and standards are old. In terms of volleyballs, surveyed and interviewed volleyball athletes rated the volleyballs sufficient in number and of “fair” to “good” quality. During OCR’s on-site visit, OCR found the volleyballs are regulation, of good quality and of sufficient quantity for a 31-35 member program to practice and compete. The nets, upon inspection during the on-site seemed relatively new, of regulation size, and adequate for practice and or competition.

Wrestling

According to [redacted content], Edison has not provided any new uniforms, shoes, headgear, or pads for the past five years. [Redacted content] informed OCR that for the last five seasons, the 14-18 wrestling athletes (including one girl) supplied their own uniforms and personal equipment. According to the District AD, Edison will be receiving money to replace wrestling uniforms in 2024-2025. Surveyed athletes confirmed [redacted content]’s survey response.

Analysis

Interests and Abilities

The information gathered in OCR’s investigation thus far reflects that the District does not effectively accommodate the interests and abilities of girls as well as boys in its interscholastic athletics programs. The District does not provide participation opportunities proportionate to enrollment rates, the District cannot show a history of program expansion, and the District has not yet demonstrated that the interests and abilities of the underrepresented sex are being fully and effectively accommodated by the current athletics program.

Part One: Participation in Proportion to Enrollment

OCR’s investigation thus far revealed that the overall District-wide female participation rates are significantly lower than the District’s female enrollment rates in its high school interscholastic athletics program, and the District provided 450 more participation opportunities for males than females for the 2021-2022 school year and would need to provide 347 more participation opportunities for females to achieve proportionality. Additionally, the data revealed that four District high schools – Edison, Henry, North and South – did not provide interscholastic athletics participation opportunities for male and female student athletes at their respective schools in numbers substantially proportionate to their enrollment rates. While Title IX does not require exact proportionality, the large differential of District-wide participation opportunities and the variance at each of these four schools cannot be explained by natural fluctuations in enrollment

and is sufficient to sustain several viable teams. Accordingly, that the information available to date reflects that the District does not provide participation opportunities to females in numbers substantially proportionate to their respective enrollments and as such, females are underrepresented in the District's high school athletics program, specifically at Edison, Henry, North and South, as well as in the District overall. The evidence does not demonstrate that the District has satisfied part one of the three-part test.

Part Two: History of Program Expansion

OCR also noted that the District has not tracked and could not identify the teams that it has added and eliminated since 1972. Accordingly, OCR determined that the District has not demonstrated compliance with part two of the three-part test.

Part Three: Interests and Abilities

Despite the disparity in enrollment and participation rates for females in the District, the District has not completed a student athletic interest survey in the past ten years and has not maintained copies of any past surveys or assessments conducted to gauge the students' athletic interests and abilities. Further, the District AD acknowledged that the District does not have written policies, procedures, or criteria for determining how and whether sports and/or levels will be added to the current interscholastic athletics programs, how an individual could request additional interscholastic athletics opportunities, or how the District will assess or respond to such requests. The District has not publicized a method by which students can request new sports or levels, should a student be interested in participating in a sport or level of sport that is not offered at their school. The school-level ADs did not identify any policies or procedures related to adding or eliminating teams and levels, nor did they appear to have knowledge of their obligation to assess whether they are providing opportunities to their male and female students that effectively accommodate their interests and abilities.

Although the District offers essentially all MSHSL-sanctioned sports at at least one of its high schools or through Co-op opportunities, the District is not providing transportation or taking steps to make sure these are meaningful opportunities that are accessible to female students in the District. Edison, Henry and North only offer nine of the twelve girls athletics teams offered at Roosevelt, Southwest and Washburn, and the District does not offer clay target shooting and synchronized swimming.

The Provision of Locker Rooms, Practice and Competitive Facilities

Additionally, OCR has identified disparities in several factors under the components of the provision of locker rooms, practice and competitive facilities.

1) Practice and Competitive Facilities

OCR observed the quality of the facilities used by the District's interscholastic athletics teams to be of average quality, with the exception of many of the fields that were observed to have patchy or uneven grass.

The largest disparity found in OCR's investigation relates to the practice and competitive facilities for the girls softball teams District-wide, particularly when compared to the facilities

provided to the boys baseball teams. The softball facilities used by the District's softball teams include Bossen Park, Creekview Park, Jackson Square Park, Pearl Park, and Pershing Park – of which Bossen Park, Jackson Square Park, Pearl Park, Pershing Park are not regulation for fast pitch softball. Although Bossen Park is a newer facility with overall higher quality fields with lighting, the field lacks scoreboards or a PA system. Jackson Park, Pearl Park and Pershing Park are lower quality fields, with weeds and patchy grass, no dugouts, and they lack adequate fencing. Although the Creekview Park softball field appears to be regulation for fast pitched softball, the facility is of poor quality and maintenance and lacks lights for evening practice or competition.

Furthermore, with respect to availability of the facilities used by the District's interscholastic athletics teams, OCR's investigation found that the girls softball teams are regularly displaced from competitive events because their facility was not available to them after 6pm due to a recreational adult men's softball league using the facility at – and often before – that time, which prevented teams from completing their competitions. Additionally, during the 2022-2023 school year, the Henry-hosted girls softball team had to compete and practice in a parking lot due to the Creekview facility not being available to them for usage.

Overall, the District boys baseball teams practice and compete at higher quality baseball fields. The Bossen Park baseball field is of lower quality and has few to no amenities, and Cassidy Field, Northeast Athletic Field and Van Cleve Field lack lighting, which negatively impact the boys baseball players; however, the other fields used by the District baseball teams are of high quality with better amenities. Although the baseball field at North Commons Park lacks lights for evening play, it is otherwise a high-quality field. Parade Stadium, Neiman Sports Complex, and Pearl Park, in particular, appeared to be fields of high quality that are regulation for competition, and some baseball players are provided the opportunity to play at a major league baseball facility, with no similar opportunity provided to female athletes.

In terms of maintenance and preparation of the practice and competitive facilities, the District generally reported that the school-level ADs and other building level staff prepare school facilities for practice and competitions, that Park Board staff prepare respective Park District facilities, and that the other outside facilities are prepared and maintained by the facility. However, several girls volleyball teams are responsible for setting up their nets for practices, competitions, or both, and several girls badminton teams reported responsibility for setting up their nets for practices and competitions, as well as seating for their events. Additionally, the girls softball teams at two schools have to set up outfield fencing because their facility lacks fencing. One school reported that the wrestling team is responsible for setting up mats for competitive events; however, all schools had a separate room used for wrestling practices that does not require set up. The disparity in preparation and maintenance appears to negatively affect a higher proportion of female athletes.

2) Locker Rooms

The male and female athletes at Edison, Henry and South had locker rooms that are of similar or identical size and quality. OCR's investigation raised concerns regarding the quality of locker rooms for the female student athletes at North, as the female athletes reported their locker rooms lacked hot water and OCR observed the locker rooms were not clean and seemed and poorly maintained. At Roosevelt, the male athletes have an additional separate locker room for

exclusive use by the athletic participants, whereas all the female Roosevelt athletes share a locker room with the students who participate in PE. The female athletes at Roosevelt also reported that their locker room lacked hot water. At Southwest, the male and female athletes had 3 sets of similar locker rooms for each sex, but also had an additional locker room at the stadium for the exclusive use of the boys football team, with occasional use by the boys soccer team. Although OCR noted this facility to be poorly cleaned and ventilated, this additional locker room is an overall benefit to the football and soccer players who use the facility. Finally, as to availability, the female athletes at several schools reported that their locker rooms are locked during the day, whereas the boys locker rooms are open and available to them.

The Provision of Equipment and Supplies (Edison only)

OCR has determined that there is insufficient evidence to establish that Edison fails to provide equal athletic opportunity in the provision of equipment and supplies. Although the complaint alleged that the Edison's girls soccer team has lower quality uniforms and does not have adequate supplies compared to the boys soccer team, OCR found Edison had sufficient and equivalent quality and quantity of soccer supplies for both a boys and girls team. OCR found that Edison provided the least amount of overall support in uniforms, equipment and supplies to its wrestling team (18 males) and boys and girls swim team (2 male and 1 female). OCR also noted the girls softball team (18 females) received more personal equipment than boys baseball (37 males), and the girls' basketball team (19 females) received more supplies (basketballs) than the boys basketball team (35 males). However, this benefit to female students was offset by an error in uniform ordering for female track and field athletes (9 females), and the girls' volleyball team (31 females) and badminton team using worn nets (9 athletes). Based on the foregoing, the evidence is insufficient to show that Edison fails to provide equal athletic opportunities for its female athletes in the provision of uniforms, equipment, and supplies.

Additional concerns regarding Booster Clubs

OCR's investigation also raised additional concerns that the booster club funds and other funds raised by the District as part of 5024 funds are not being monitored, which may be causing inequities. Student athletes at some District schools reported booster funds have been used to purchase multiple uniforms and warm-up sets for some teams and used to purchase coach buses as transportation to competitive events for only some sports.

Conclusion and Resolution Agreement

In accordance with Section 302 of OCR's CPM, a complaint may be resolved at any time when, before the conclusion of the investigation, the recipient expresses an interest in resolving the complaint. OCR determined that it is appropriate to resolve the complaint allegations because the District expressed interest in resolving the complaint through a 302 resolution agreement and OCR has identified concerns that can be addressed through a resolution agreement.

Prior to the conclusion of OCR's investigation, the District signed the enclosed Agreement, which is fully aligned with the complaint allegations, the evidence obtained to date, and OCR's compliance concerns. The Agreement requires the District to equally and effectively accommodate the athletics interests and abilities of both girls and boys and to provide equal opportunities in the provision of locker rooms, practice and competitive facilities. The

Agreement requires the District to create District-wide policies for the interscholastic athletics program; to establish a Stakeholder Committee to provide input and recommendations to the District as it creates its District-wide policies and procedures; to conduct a full assessment of how the District can equally and effectively accommodate the athletic interest and abilities to the extent necessary to provide equal opportunities for female students in its high school interscholastic athletics program; develop a plan, with timeframes, to increase participation opportunities for female students as necessary to demonstrate compliance with Title IX; to similarly assess and develop a plan with respect to the provision of practice and competitive facilities and locker rooms at each School in the District; and to provide training to its Title IX Coordinators, ADs, principals and coaches on their responsibilities under Title IX and its application to athletics, including how funding sources can affect the balance of equivalent benefits for male and female athletes.

This concludes OCR's investigation of the complaint and should not be interpreted to address the District's compliance with any other regulatory provision or to address any issues other than those addressed in this letter. This letter sets forth OCR's determination in one OCR case. This letter is not a formal statement of OCR policy and should not be relied on, cited, or construed as such. OCR's formal policy statements are approved by a duly authorized OCR official and made available to the public.

Please be advised that the District may not harass, coerce, intimidate, discriminate or otherwise retaliate against any individual because he or she has filed a complaint or participated in the complaint resolution process. If this happens, the individual may file a complaint with OCR alleging such treatment.

The complainant may have a right to file a lawsuit in federal court whether or not OCR finds a violation.

Under the Freedom of Information Act, it may be necessary to release this document and related correspondence and records upon request. In the event that OCR receives such a request, we will seek to protect, to the extent provided by law, personally identifiable information, which, if released, could reasonably be expected to constitute an unwarranted invasion of privacy.

OCR looks forward to working with the District during the monitoring of the Agreement. If you have any questions about this letter, please contact Mr. Miguel Figueras at (202) 987-1346 or miguel.figueras@ed.gov.

Sincerely,

Melissa Katt
Supervisory Attorney

Enclosure

cc: Margaret A. Skelton, via email only to mas@ratwiklaw.com